

DIVORCE.

When to be heard and determined at the first term, ii 477, c 20

To take place where the feme is pregnant before marriage in certain cases, *ib*

DOWER.

See Widow.

When, of lands in mortgage, 23, s 13; 295, s 8

Of what lands the widow may have, 295, s 8

Method of assigning, 296, s 9; 362, c 32; ii 219, c 85

Where the lands lie in or are divided by any county line the jury to proceed as if they were in the same county 362, c 32

Jurors to lay off how summoned and by whom to be paid, ii 219, s 1, *et seq.*

DOCUMENTS.

Errors in certain, transcribed from the secretaries office of North Carolina how rectified, ii 86, c 35

DRUNKENNESS.

Penalty for getting drunk 2s 6d. but if on the Lord's day 5s 56, s 5; See 1803, c 47; 795, s 2

In case of a clergyman, 57, s 13; 795, c 47, s 2

DUELLING.

Penalty on principals and seconds attempting to fight, 713, s 1, c 32

Penalty for carrying, giving or accepting a challenge, 719, s 2, c 32; 1127 c 5

Killing in a duel deemed murder, 719, s 3

All officers civil and military, to take an oath against, ii 364, c 84, s 1

Form of the oath to be taken against duelling by public officers, ii 365, c 84

DEER.

Provision against killing deer, 78; repealed by act 1809, c 94; 1187

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EJECTMENT.

Injunctions after a trial at law in, not to be dissolved before final hearing, 692, s 47

After issue joined in, no exception shall be allowed to the declaration 694, s 60

Verdict and judgment may be pleaded in bar, *ib* repealed 1805, 861, c 24

Security required for costs in actions of, 699, c 11 s 1

Defendants in, held to bail, 700, s 2

Tenants in possession liable for costs, *ib* s 3

Tenants not allowed to defend without giving security, 700, s 5

Defendant in, to give plaintiff notice that he will prove the value of his improvements on the trial ii 115, s 1

And plaintiff that he will prove the amount of mesne profits, *ib*

What improvements and mesne profits to be allowed, *ibid*

Jury to set profits and improvements one against the other and find the balance for which judgment shall be rendered ii 115, s 2

Where the balance is in favor of the defendant no writ of possession to issue until the balance is paid *ib*

Suits in, not to abate by death ii 474, s 4, 5

Actions of, to be brought against such as are in possession of school lands ii 636, c 23, s 1

ELECTIONS.

Three justices to appoint a freeholder to take the poll at, where there is neither coroner nor sheriff 253, c 4, s 10